

U.S. DEPARTMENT OF AGRICULTURE
WASHINGTON, D.C. 20250

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SUBJECT: Section 508 Program	DATE: July 1, 2026
OPI: Office of the Chief Information Officer, Information Resource Management Center	EXPIRATION DATE: July 1, 2031

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1. PURPOSE

- a) This Departmental Regulation (DR) establishes the United States Department of Agriculture (USDA) policy for the implementation of Section 508 of the *Rehabilitation Act of 1973*, [29 United States Code \(U.S.C.\) § 794d](#), as amended. Section 508 of the *Rehabilitation Act* applies to all Federal agencies when developing, procuring, maintaining, or using information and communication technology (ICT).
- b) USDA is committed to ensuring that employees, job applicants, and members of the public with disabilities have access to ICT comparable to the access available to those without disabilities.

2. SCOPE

This DR applies to all USDA Mission Areas, agencies, staff offices, employees, appointees, and contractors performing work for, or on behalf of, USDA. All ICT developed, procured, funded, maintained, and used by USDA must be accessible to individuals with disabilities, including employees, job applicants, and members of the public seeking information or services from the agency, in accordance with Section 508 of the Rehabilitation Act of 1973, as amended.

3. SPECIAL INSTRUCTIONS/CANCELLATIONS

- a) This DR supersedes DR 4030-001, *Section 508 Program*, dated April 8, 2014.
- b) Mission Areas, agencies, and staff offices will align their policies and procedures with this DR within 6 months of the publication date.

4. BACKGROUND

- a) In 1998, Congress amended the Rehabilitation Act of 1973 to require Federal agencies to make their electronic information and technology (EIT) accessible to people with disabilities. Under Section 508, agencies must give individuals with disabilities, including employees, job applicants, and members of the public, access to information comparable to the access available to others.

The [U.S. Access Board](#) (“Access Board”) is responsible for developing accessibility standards. In 2017, the U.S. Access Board published a Final Rule that updated accessibility requirements covered by Section 508 and refreshed guidelines in the law. The Final Rule went into effect on January 18, 2018. The original Section 508 term EIT was replaced with Information and Communication Technology (ICT), to reflect new technologies. Categories of ICT include electronic content, hardware, software, and support documentation and services. The regulations can be found at [36 CFR Part 1194](#).

- b) The Access Board Section 508 standards apply to procurements by the Federal Government. This includes but is not limited to computer hardware and software, websites, phone systems, and copiers. Section 508 of the *Rehabilitation Act* requires that all ICT developed, procured, funded, maintained, and used by Federal agencies be accessible to individuals with disabilities, including employees, and members of the public seeking information or services from the agency.

- 1) Refresh of the Section 508 standards and the *Communications Act of 1934*, [47 U.S.C. § 255](#), *Access by Persons with Disabilities*

- (a) On January 18, 2017, the Access Board published the [Final Rule](#), *Information and Communication Technology (ICT) Standards and Guidelines*. The Final Rule updates the Section 508 standards along with the accessibility guidelines

for telecommunication products and equipment covered by Section 255 of the *Communications Act*. The Access Board standards are available at [*Information and Communication Technology: Revised 508 Standards and 255 Guidelines*](#).

- (b) The Final Rule updated and reorganized the Section 508 standards and Section 255 guidelines in response to market trends and innovations, such as significant advancements in technology. The Final Rule also harmonized these requirements with other guidelines and standards both in the U.S. and abroad. These include European Telecommunications Standards Institute (ETSI) accessibility standards [*EN 301 549*](#), V3.2.1, *Accessibility Requirements for ICT Products and Services*, for public ICT procurement. They also include the *World Wide Web Consortium (W3C)* [*Web Content Accessibility Guidelines \(WCAG\) 2.1*](#) and the approved [*Web Content Accessibility Guidelines \(WCAG\) 2.2*](#), a globally recognized voluntary consensus standard for web content and ICT.

2) Coverage of electronic content (Section 508 standards)

Similar to the original Section 508 standards, the updated Section 508 standards apply to a Federal agency's full range of public-facing content. This includes, but is not limited to websites, documents and media, blog posts, and social media sites. The Final Rule specifically lists the types of non-public-facing content that must comply. The list includes but is not limited to:

- (a) Electronic content used by a Federal agency for official business to communicate emergency notifications;
- (b) Initial or final decisions adjudicating administrative claims or proceedings;
- (c) Internal or external program or policy announcements;
- (d) Notices of benefits, program eligibility, employment opportunity, or personnel action;
- (e) Formal acknowledgements or receipts;
- (f) Questionnaires or surveys;
- (g) Templates or forms;
- (h) Educational or training materials; and
- (i) Web-based intranets.

5. POLICY

USDA is committed to making its ICT accessible to all people, including individuals with disabilities. Compliance with the Section 508 standards is mandatory for Federal agencies. This policy establishes the guidance and responsibilities for implementing and maintaining an ICT accessibility program to ensure the following:

- a) Employees and job applicants with disabilities have access to ICT that is comparable to the access and use by employees and job applicants who do not have disabilities, unless it would impose an undue burden on the agency.
- b) Individuals with disabilities, who are members of the public seeking information or services from the agency, have access to and use of USDA information and services that is comparable to that provided to the public who are not individuals with disabilities, unless an undue burden would be imposed on the agency.
- c) All ICT systems or products that provide direct services to the public or Federal employees are accessible to individuals with disabilities. This does not apply only if a formal request for an exception from an established Section 508 standard is granted. The procedures can be found in the Departmental Manual (DM) 4030-001, *Section 508 Procedures*.
- d) All USDA Mission Areas, agencies, and staff offices will work with the USDA Section 508 Program Office, within the Office of the Chief Information Officer (OCIO), to establish their Section 508 program within six months of the publication date of this DR.
- e) All USDA Mission Areas, agencies, and staff offices will establish information technology (IT) procurement guidance for Section 508 compliant solicitations for all ICT, per this DR and the Federal Acquisition Regulations (FAR) [48 Code of Federal Regulations \(CFR\) Part 39, Acquisition of Information Technology](#). This will occur within 3 months of the publication date of this DR.
- f) All USDA Mission Areas, agencies, and staff offices will appoint a Section 508 Coordinator within 2 months of the publication of this DR.
 - 1) The USDA Section 508 Program Office will provide coordinators with the criteria and training requirements needed for a person to serve as a Section 508 Coordinator.
 - 2) Evidence of the appointment will be documented in writing and submitted annually to the USDA Section 508 Program Office.
- g) Section 508 Coordinators are responsible for managing their respective Mission Area, agency, or staff office Section 508 programs. This includes developing and maintaining Section 508 policies, guidance, and other best practice efforts on behalf of their program office.

6. SECTION 508 TRAINING AND AWARENESS

- a) All current and new USDA employees and contractors must complete Section 508 mandatory training annually. The training provides a general overview of the Section 508 requirements, USDA Section 508 responsibilities, and product delivery service requirements for employees and members of the public.
- b) Additionally, all USDA Section 508 Coordinators and employees performing in roles pertinent to the Section 508 provisions must also complete specialized Section 508 training. This includes Section 508 accessibility webinars, Trusted Tester training, document remediation training, and quality assurance training for ICT and electronic content.
- c) The AgLearn training system will annually notify employees and contractors when they must complete the mandatory Section 508 training. The USDA Section 508 Program Office will report metrics pertaining to training completion to the Office of Management and Budget (OMB), the General Services Administration (GSA), and the Access Board.
- d) Continuing education is a requirement for USDA's Section 508 Program Manager (PM) and all Section 508 Coordinators. This ensures that they can comply with laws and stay current with the latest accessibility developments, issues, skills, and new technologies.

7. SECTION 508 COMPLIANCE

- a) USDA employees are responsible for working with their Mission Area, agency, or staff office Section 508 Coordinator to ensure that their ICT is accessible to individuals with disabilities. If a Mission Area, agency, or staff office does not have a designated Section 508 Coordinator, contact the USDA Section 508 Program Office for assistance at Section508-ocio@usda.gov.
- b) To the greatest extent possible, Mission Areas, agencies, and staff offices must ensure that their ICT, regardless of platform or media, meets the technical provisions for accessibility as prescribed by the Access Board.
- c) If the agency determines that acquiring ICT that meets the technical provisions of Section 508 would impose an undue burden or an exception, the agency still has an obligation to make information and data available by an alternative means.
- d) Mission Areas, agencies, and staff offices must ensure the development of a plan for risk management, risk assessments and the documentation of buying, implementing, developing, maintaining, and using ICT products that do not meet the Access Board's technical standards.

- e) To determine if your agency acquiring of ICT meets technical provisions of Section 508 that would impose an undue burden, risk acceptance, or require an exception. These procedures can be found in the Section 508 Procedures.

The USDA Chief Information Officer (CIO), serving as the USDA Section 508 Official, or the CIO's designee may grant an exception.

8. SECTION 508 COMPLAINT PROCEDURES

Section 508 of the *Rehabilitation Act of 1973* is a law that requires federal agencies to ensure that their ICT is accessible to people with disabilities. If you need to report a Section 508 violation or need to request accessibility to digital content, the administrative process is as follows:

- a) Submit your administrative violation to the Section 508 Program Manager at Section508-ocio@usda.gov describing the ICT that is inaccessible, the Staff Office or Mission Area that is responsible for the content, and the impact on your ability to access the information or services.
- b) Provide your contact information and any supporting information or documents.
- c) The Section 508 Program Office will review the administrative violation or accessibility request within a reasonable timeframe. You may also contact the Staff Office or Mission Area Section 508 Coordinator for their assistance and guidance. For more information, you can visit the [Section 508 website](#).
- d) Complaints of discrimination regarding Section 508 accessibility should be filed with the Office of the Assistant Secretary for Civil Rights. A complainant may file a complaint **online via the Program Discrimination Complaint Portal** [Complaint Form Portal](#); by completing the [USDA Program Discrimination Complaint Form \(English\)](#), at any USDA office by calling (866)- 632-9992, or sending an email/letter to program.intake@usda.gov.

9. SECTION 508 MANDATORY REQUIREMENTS

- a) The Access Board's technical provisions are mandatory requirements that must be met directly or through substantially equivalent or greater access. This is also known as equivalent facilitation. The USDA Section 508 Official may approve a request for an exception.
- b) USDA will ensure that all ICT meets the revised requirements of Section 508 and the FAR. Specifically:

- 1) USDA must provide the applicable Section 508 provisions in contract language to all contractors.
- 2) Conformance to the Section 508 standards must persist whenever there are upgrades (system or application), patches, and alterations to ICT products and services. This includes, but is not limited to, websites, software systems, documents, emails, training materials, and multimedia.
- 3) All internal and external emails and their attachments must have meaningful links that are accessible to recipients with disabilities.
- 4) Broadcasted emails must comply with the applicable Section 508 standards. They may not substitute individual accommodations for Section 508 compliance.
- 5) Disseminated working draft documents should meet the Section 508 standards as much as practicable. Alternatively, accessible formats or an equivalent facilitation must be made available upon request.

All contracts and purchase agreements for the procurement of ICT must include all necessary provisions for Section 508 compliance. This is mandatory unless an exception was granted in accordance with established Section 508 standards and USDA procedures. These procedures can be found in the *Section 508 Procedures*.

- c) Contracting officers and individual credit card purchasers must acquire ICT that meets the applicable technical provisions to the maximum extent practicable. Solicitations for ICT should be drafted so that personnel may consider products offering equivalent facilitation, along with those that strictly meet the technical provisions in the Access Board's standards.

10. SECTION 508 PRODUCT EVALUATION AND REMEDIATION

- a) All newly developed or procured ICT and pre-existing ICT that USDA maintains and uses will undergo assessment for compliance. This must occur in accordance with the Access Board and the *Section 508 Reference Procedures*.
- b) All solicitation which includes ICT must specify accessibility requirements.
- c) Vendors must create an Accessibility Conformance Report (ACR) using the current GSA [*Voluntary Product Accessibility Template \(VPAT®\)*](#) for all ICT developed or procured by USDA. Vendors must provide the report to the Mission Area, agency, or staff office Section 508 Coordinator prior to deployment.
- d) All USDA employees and contractors performing work for, or on behalf of, USDA must report to the Section 508 Coordinator all pre-existing and legacy ICT operating and

maintained in a production environment without a Section 508 compliance determination. The Section 508 Coordinator will perform quality assurance testing and validation.

- e) Only ICT that has been appropriately reviewed and determined to be Section 508 compliant, or that has been granted an exception in accordance with procedures in the *Section 508 Procedures*, will be placed into production. All ICT operating in a production environment that is noncompliant with Section 508 must have a remediation plan for achieving compliance or a request for an exception prepared and submitted to the USDA Section 508 Program Office within 45 business days of the noncompliance determination. Submit requests to Section508-ocio@usda.gov.

11. ROLES AND RESPONSIBILITIES

- a) The Secretary or designee will:

- 1) Provide guidance on compliance to USDA Mission Areas, agencies, and staff offices regarding the implementation of Section 508 of the *Rehabilitation Act*;
- 2) Ensure that funding is available to support the USDA Section 508 Program Office for the personnel and the purchasing of needed tools (e.g., Section 508 remediation, website monitoring and testing, document and training testing, software automation);
- 3) Ensure that funding is available to support collaboration with Mission Areas, agencies, and staff offices on the purchase of proposed ICT enterprise-approved solutions to support accessibility;
- 4) Designate a senior-level executive as the USDA Section 508 Official, [7 CFR § 2.32\(a\)\(12\)\(viii\)](#) delegates the Office of the Chief Information Officer (OCIO), Chief Information Officer (CIO) as the 508 Official;
- 5) Ensure that Section 508 discrimination complaints are forwarded to the Assistant Secretary for Administration (ASA), Office of the Secretary (OSEC), and the CIO upon request; and
- 6) Ensure that submission of reports and survey data related to ICT are provided to appropriate Government organizations. These include, for example, Congress, the Senate Committee on the Budget, and the House Committee on Oversight and Reform.

- b) The ASA will:

- 1) Serve as the USDA Chief Acquisition Officer (CAO);

- 2) Implement Section 508 standards in the overall IT acquisition strategy and IT contract portfolio for the Department;
 - 3) Review the IT acquisition process in coordination with the USDA CIO and the Director, Office of Contracting and Procurement (OCP), serving as the Senior Procurement Executive (SPE) to ensure that Section 508 requirements are met;
 - 4) Delegate policy and oversight aspects of IT acquisitions to the Director, OCP, as it relates to Section 508 compliance and accessibility;
 - 5) Address other CAO responsibilities as outlined in the FAR (see [*Federal Acquisition Regulation: Section 508-Based Standards in Information and Communication Technology*](#)) to ensure that Mission Areas, agencies, and staff offices comply with Section 508 in their acquisitions of ICT; and
 - 6) Address the Section 508 contract language in contracts when needed or upon request.
- c) The USDA CIO will:
- 1) Provide oversight for the USDA Section 508 Program as delegated by the Secretary per [7 CFR § 2.32\(a\)\(12\)\(viii\)](#);
 - 2) Serve as the USDA Section 508 Official;
 - 3) Designate the USDA Section 508 PM;
 - 4) Maintain and provide leadership to the USDA Section 508 Program.
 - 5) Provide guidance to the USDA Section 508 PM;
 - 6) Provide policy management, coordination, and oversight of the design, acquisition, maintenance, use, and dissemination of ICT;
 - 7) Ensure that Section 508 accessibility considerations are incorporated into the planning, operation, and management of any ICT that the Department develops, uses, or maintains;
 - 8) Ensure that funding and resources are available for the USDA Section 508 Program Office and its activities;
 - 9) Ensure that Section 508 is incorporated into all acquisition and development processes in OCIO in collaboration with the CAO;

- 10) Review and approve all Section 508 exception requests. Ensure that an appropriate response is provided for each unless delegated to the OCIO Information Resource Management Center (IRMC) Associate Chief Information Officer (ACIO);
- 11) Collaborate with the Secretary or Designee and other senior USDA officials on matters pertaining to the implementation of Section 508 requirements and the resolution of Section 508 complaints;
- 12) Develop and implement Departmental policy to ensure that the Section 508 requirements are integrated with, but not limited to, [DR 3130-013](#), *Information Technology Capital Planning and Investment Control*; [DR 3130-010](#), *United States Department of Agriculture Enterprise Information Technology Governance*; and [DR 3145-001](#), *Oversight and Management of the Federal Information Technology Acquisition Reform Act (FITARA)*;
- 13) Provide Section 508 conformance information in response to the biennial (every other year) Department of Justice (DOJ) Section 508 survey to OMB and DOJ;
- 14) Provide Section 508 conformance information in response to the annual OMB Governmentwide Section 508 Assessment Report to OMB and DOJ; and
- 15) Monitor and report USDA compliance on the USDA Section 508 Program regarding operational activities to OMB and the White House.

d) Mission Area, Agency, and Staff Office Heads will:

- 1) Ensure senior executive leadership and accountability for the implementation of the Section 508 requirements in their respective program offices;
- 2) Designate a Mission Area, agency, or staff office Section 508 Coordinator and communicate the selection to the USDA Section 508 PM in writing;
- 3) Support the implementation of Section 508 in the development, acquisition, maintenance, use, and management of ICT products and services within their organization;
- 4) Ensure that funding and resources are available to use towards Section 508 compliance and managerial activities;
- 5) Review all Section 508 exception requests to ensure that an appropriate response is provided for each and records are properly maintained;
- 6) Ensure that Section 508 is incorporated into acquisition and developmental processes;

- 7) Ensure that only Section 508 compliant ICT or ICT with a documented exception operates in the USDA production environment;
 - 8) Ensure that employees and contractors within their Mission Area, agency, and staff office complete Section 508 training as required; and
 - 9) Update or reconfirm the Section 508 Coordinator's appointment letter annually, or more often as needed.
- e) The USDA Office of the General Counsel (OGC) will:
- 1) Provide legal advice to the Secretary of Agriculture, senior officials, Mission Areas, agencies, and staff offices on questions of law involving Section 508 across all USDA;
 - 2) Provide legal advice on compliance with Section 508; and
 - 3) Advise and defend USDA, as needed, to address Section 508 complaints.
- f) The Director, OCP, will:
- 1) Serve as the USDA Senior Procurement Executive (SPE);
 - 2) Ensure, in collaboration with the CIO, that Section 508 requirements are incorporated into any ICT that is procured by the Department;
 - 3) Ensure that individuals involved in all financial planning and requirements generation develop plans and specifications that address ICT accessibility using the Section 508 standards addressed in the FAR;
 - 4) Include Section 508 contract language and any required supporting documentation for all ICT acquisitions. Apply due diligence as part of the market research requirements; and
 - 5) Use GSA's [*Accessibility Requirements Tool \(ART\)*](#) as a resource to locate Section 508 compliant products, services, and accessibility-related documentation for the contract file.
- g) The Office of the Assistant Secretary for Civil Rights (OASCR) will:
- 1) Ensure that Mission Areas, agencies, and staff offices conduct internal reviews to ensure their policies and procedures comply with Section 508 regulations, mandates, and amendments;
 - 2) Develop, implement, and maintain procedures for processing complaints of discrimination filed with OASCR by Federal employees, applicants for employment

at USDA, and members of the public. These procedures also apply to all complaints alleging a violation of the agency's responsibility to procure ICT under Section 508 whether filed by members of the public or USDA employees or job applicants;

- 3) Ensure procedures are consistent with [7 CFR § 2.25](#), *Assistant Secretary for Civil Rights*. This section defines the ASCR's delegated authority. The procedures must also conform with [7 CFR Part 15e](#), *Enforcement of Nondiscrimination on the Basis of Handicap in Programs or Activities Conducted by the United States Department of Agriculture*;
- 4) Maintain a system to track, document, and monitor Section 508 informal and formal complaints received by OASCR;
- 5) Ensure Section 508 complaints received by OASCR are timely and properly processed;
- 6) Evaluate the effectiveness of OASCR's procedures for processing Section 508 informal and formal complaints and implement changes as needed; and
- 7) Provide reports and survey data on the number and status of Section 508 informal and formal complaints received by OASCR to the appropriate Federal agencies, OMB, and Congress.

h) The ACIO, OCIO-IRMC, will:

- 1) Serve as acting USDA Section 508 Official, upon delegation from the CIO;
- 2) Monitor the impact, needs, and performance of the USDA Section 508 Program Office;
- 3) Implement Section 508 compliance within USDA;
- 4) Provide leadership and guidance to the USDA Section 508 PM;
- 5) Identify and evaluate current and future accessibility tools and technology for use across the Department;
- 6) Identify and document ICT deficiencies impacting the performance of individuals with disabilities in both current and future prospective ICT systems;
- 7) Establish enterprise system and accessibility testing protocols; and
- 8) Advise the Secretary and other senior USDA officials on matters pertaining to the implementation of Section 508 requirements and the resolution of Section 508 complaints.

- i) The Director, OCIO-IRMC Enterprise Architecture Division will:
 - 1) Serve as the USDA Chief Enterprise Architect (CEA);
 - 2) Confirm that ICT acquisitions, investments, and projects follow the USDA Section 508 Program or the Access Board standards and guidelines;
 - 3) Collaborate with the USDA Section 508 Program to promote Section 508 awareness; and
 - 4) Ensure that Section 508 is integrated into [DR 3185-001](#), *Enterprise Architecture*.
- j) The Director, OCIO IRMC Information Management Division (IMD), will:
 - 1) Provide leadership and oversight for the USDA Section 508 Program and guidance to the USDA Section 508 PM;
 - 2) Collaborate with the Director, OCIO IRMC Capital Planning and IT Governance Division, to ensure that DR 3130-013 and DR 3130-010 incorporate Section 508 standards;
 - 3) Monitor the impact, needs, and performance of the USDA Section 508 Program Office;
 - 4) Advise the USDA CIO and other senior USDA officials on matters pertaining to the implementation of Section 508 requirements and the resolution of Section 508 complaints;
 - 5) Assist with identifying and evaluating current and future tools and technology for use across the Department;
 - 6) Assist with identifying and documenting ICT deficiencies impacting the performance of individuals with disabilities in both current and future prospective ICT systems; and
 - 7) Establish enterprise systems and accessibility testing protocols that support the assessment, reporting, and remediation of Section 508 violations.
- k) The Director, OCIO IRMC Capital Planning and IT Governance Division, will:
 - 1) Ensure that DR 3130-013 and DR 3130-010 incorporate Section 508 standards;
 - 2) Ensure that USDA functional business areas, along with their IT investments, systems, and applications deliverables, are Section 508 compliant and accessible;

- 3) Ensure that AgMax has Section 508 contract language in procurement submission before approval; and
 - 4) Ensure that the IT governance process and procedures incorporate Section 508 standards.
- l) The Director, OCIO IRMC FITARA, will:
- 1) Ensure that DR 3145-001 incorporates Section 508 standards;
 - 2) Ensure that all applicable policies, procedures, and governance structures are consistent with the Section 508 standards for accessibility; and
 - 3) Ensure that the IT investment processes and procedures incorporate Section 508 standards.
- m) The USDA Section 508 PM will:
- 1) Manage the USDA Section 508 Program Office;
 - 2) Assist in the establishment of a strong and inclusive USDA Section 508 Program foundation across USDA;
 - 3) Oversee USDA Section 508 Program activities and abide by established standards;
 - 4) Host reoccurring meetings as necessary with Mission Area, agency, and staff office Section 508 Coordinators and accessibility professionals to provide updates, training, and information pertaining to Section 508;
 - 5) Coordinate the identification and remediation of noncompliant ICT operating in a production environment;
 - 6) Educate USDA employees and contractors on the importance of Section 508 as it applies to the acquisition, development, maintenance, and use of ICT;
 - 7) Establish procedures for conducting semiannual reviews of approved exceptions to ensure compliance with Section 508;
 - 8) Update this DR and the *Section 508 Procedures* in accordance with USDA policy;
 - 9) Implement standards, policies, and guidelines pertaining to Section 508-related activities across USDA;
 - 10) Monitor and report on Section 508 compliance in USDA Mission Areas, agencies, and staff offices;

- 11) Identify current and prospective ICT deficiencies impacting individuals with disabilities;
 - 12) Develop and maintain standardized Section 508 contract language to be used in solicitations and related procedures;
 - 13) Ensure that individuals involved in all financial planning and requirements generation develop plans and specifications that address ICT accessibility using the Section 508 standards addressed in the FAR;
 - 14) Review and respond appropriately to Section 508 exception requests;
 - 15) Routinely monitor the Access Board and the GSA websites for updated Section 508 guidance, training opportunities, and best practices;
 - 16) Collect, organize, and submit Section 508 conformance metrics and information pertaining to each Mission Area, agency, and staff office in response to the annual OMB Governmentwide Section 508 Assessment Report;
 - 17) Collect, organize, and submit Section 508 conformance metrics and information pertaining to each Mission Area, agency, and staff office in response to the biennial DOJ Section 508 survey;
 - 18) Collaborate with OGC, OASCR, and the CEA to support Section 508 initiatives;
 - 19) Advise the CIO and other senior USDA officials on matters pertaining to the implementation of Section 508 requirements and the resolution of Section 508 violations;
 - 20) Ensure that Section 508 program manager tasked with testing and evaluating digital accessibility have appropriate expertise and have, at a minimum, participated in a certified Section 508 conformance training program, such as the Department of Homeland Security (DHS) Trusted Tester Certification Program;
 - 21) Represent USDA at Federal meetings, conferences, and training sessions on Section 508, as appropriate; and
 - 22) Participate in the Accessibility Community of Practice (ACOP) to maintain compliance with laws and stay current with the latest developments, issues, skills, and new technology requirements for compliance and accessibility.
- n) Mission Area, Agency, and Staff Office Section 508 Coordinators will:
- 1) Define and oversee Mission Area, agency, and staff office Section 508 program activities, including the strategic implementation of Section 508 procedures in order to meet Departmentwide Section 508 and accessibility standards;

- 2) Develop guidelines for how ICT is procured, developed, deployed, and used in accordance with Section 508;
- 3) Execute Section 508 activities related to training, acquisition, ICT evaluations, exception requests, and complaint consultations;
- 4) Provide technical assistance on Section 508 issues within their Mission Area, agency, or staff office;
- 5) Support PMs in reviewing completed vendors' Information Technology Industry Council (ITIC) VPAT® and ACR generated by GSA's ART within the business component;
- 6) Track and report Mission Area, agency, or staff office Section 508 conformance metrics as required by the USDA Section 508 PM in response to the OMB Governmentwide Section 508 Assessment Report and the DOJ Section 508 survey;
- 7) Track, review, and respond appropriately to Section 508 exception requests;
- 8) Communicate Section 508-related issues and concerns to the USDA Section 508 PM;
- 9) Evaluate ICT against the Section 508 conformance standards. Provide remediation guidance to vendors, development teams, and content creators where applicable;
- 10) Coordinate the identification of noncompliant ICT in the USDA production environment;
- 11) Ensure the development and completion of remediation plans for ICT identified as noncompliant with Section 508;
- 12) Ensure that the Section 508 contract language provided by the USDA Section 508 PM and any required artifacts are included in solicitations;
- 13) Ensure all coordinators tasked with testing and evaluating digital accessibility have appropriate expertise and have, at a minimum, participated in a certified Section 508 conformance training program, such as the Department of Homeland Security (DHS) Trusted Tester Certification Program;
- 14) Represent their Mission Area, agency, or staff office at Federal meetings, conferences, and training sessions for Section 508 as appropriate; and
- 15) Participate in meetings and events held by the USDA Section 508 Program Office to receive updated information and guidance pertaining to Section 508.

o) Acquisition, Management, and Procurement Officials (Contracting Officers) will:

- 1) Incorporate standardized Section 508 contract language and all related artifacts in solicitations for all ICT procurements;
- 2) Enforce contract compliance with all applicable Section 508 contract provisions;
- 3) Advise procurement package creators on the Section 508 acquisition requirements;
- 4) Ensure that the results from market research and the documentation for approved exceptions, if applicable, are maintained in the contract files for all ICT procurements; and
- 5) Ensure that all ICT procurements are evaluated for Section 508 conformance.

p) Project Managers will:

- 1) Conduct market research in accordance with USDA policy and procedures to identify Section 508-compliant ICT that meets the business need;
- 2) Use the ART as a resource to locate Section 508-compliant products, services, and vendor voluntary product accessible templates for the contract file;
- 3) Include the Section 508 contract language and supporting documentation for all ICT acquisitions and apply due diligence as part of the market research requirements;
- 4) Ensure that all ICT procurements are evaluated for Section 508;
- 5) Review the Access Board and GSA standards to determine the applicable Section 508 standards for procured and developed ICT products and services;
- 6) Determine and ensure that the applicable Section 508 standards are defined early in development life cycles;
- 7) Determine, request, and document any applicable Section 508 exceptions in accordance with the USDA Section 508 exception process detailed in the *Section 508 Procedures*;
- 8) Develop and implement appropriate remediation plans for noncompliant ICT operating in the production environment;
- 9) Ensure that newly developed or procured ICT is either Section 508 compliant or has a documented and approved exception granted prior to use in the production environment; and

- 10) Ensure that vendors provide complete and accurate responses to the Section 508 standards for all ICT being developed, procured, maintained, or used by USDA employees and contractors and the public.

q) Developers, Content Creators, Software Engineers, and Webmasters will:

- 1) Incorporate the applicable Section 508 standards throughout development life cycles;
- 2) Design, develop, and implement ICT services with Section 508-compliant and accessible user interfaces;
- 3) Create, maintain, evaluate, and remediate accessible ICT and electronic content in accordance with Section 508 and the current WCAG standards; and
- 4) Develop and implement remediation plans for known accessibility-related issues in accordance with USDA procedures.

r) USDA Employees and Contractors performing work on behalf of USDA will:

- 1) Complete the mandatory Section 508 training annually;
- 2) Properly apply Section 508 provisions to relevant work activities;
- 3) Engage with the respective Section 508 Coordinator throughout the acquisition, development, and authoring processes of all ICT;
- 4) Provide evidence of accessibility conformance when required;
- 5) Adhere to the requirements of this USDA policy, and its associated standards and procedures, when developing, procuring, maintaining, or using ICT; and
- 6) Ensure that all content, documents, applications, and files authored, owned, developed, maintained, and submitted for publication on USDA public-facing websites, on internal USDA platforms and the USDA intranet, or distributed via broadcast emails, for which they are responsible, are Section 508 compliant per the Section 508 standards.

12. INQUIRIES

Direct all questions concerning this DR to the OCIO, IRMC, IMD Section 508 Program Manager via email at Section508-ocio@usda.gov.

-END-

APPENDIX A

ACRONYMS AND ABBREVIATIONS

ACIO	Associate Chief Information Officer
ACOP	Accessibility Community of Practice
ACR	Accessibility Conformance Report
AD	Agriculture Department (Departmental form prefix)
ART	Accessibility Requirements Tool
ASA	Assistant Secretary for Administration
ASCR	Assistant Secretary for Civil Rights
CAO	Chief Acquisition Officer
CEA	Chief Enterprise Architect
CFR	Code of Federal Regulations
CIO	Chief Information Officer
DM	Departmental Manual
DOJ	Department of Justice
DR	Departmental Regulation
EEO	Equal Employment Opportunity
EEOC	Equal Employment Opportunity Commission
EIT	Electronic and Information Technology
ETSI	European Telecommunications Standards Institute
FAR	Federal Acquisition Regulations
FCC	Federal Communications Commission
FITARA	Federal Information Technology Acquisition Reform Act
GSA	General Services Administration
ICT	Information and Communication Technology
IMD	Information Management Division (OCIO-IRMC component)
IRMC	Information Resource Management Center (OCIO component)
IT	Information Technology
ITIC	Information Technology Industry Council
OASCR	Office of the Assistant Secretary for Civil Rights
OCIO	Office of the Chief Information Officer
OCP	Office of Contracting and Procurement
OGC	Office of the General Counsel
OMB	Office of Management and Budget
OSEC	Office of the Secretary
P.L.	Public Law
PM	Program Manager
SPE	Senior Procurement Executive
U.S.C.	United States Code
USDA	United States Department of Agriculture
VPAT®	Voluntary Product Accessibility Template
W3C	World Wide Web Consortium
WCAG	Web Content Accessibility Guidelines

APPENDIX B

DEFINITIONS

Access Board. An independent Federal agency that promotes equality for individuals with disabilities through leadership in accessible design and the development of accessibility guidelines and standards. Also known as the Architectural and Transportation Barriers Compliance Board. (Source: Access Board, [About the U.S. Access Board](#)).

Accessibility Conformance Report (ACR). ACR is a representation of how the product meets the applicable Section 508 technical standards. The product owner or developer must first test the product against those standards in order to complete an ACR. Currently, the most common way to complete an ACR is by using the Voluntary Product Accessibility Template (VPAT®) template created by the ITIC. (Source: GSA, [Section508.gov](#), [How to Create an Accessibility Conformance Report Using A Voluntary Product Accessibility Template \(VPAT®\)](#)).

Accessibility Requirements Tool (ART). A step-by-step guide to help easily identify relevant accessibility requirements from the revised Section 508 standards (see the Access Board, *Information and Communication Technology: Revised 508 Standards and 255 Guidelines*) and incorporate them into procurement and contracting documentation, as well as in-house IT development. The GSA's IT Accessibility Program developed ART as part of its mission to provide technical assistance to Federal agencies, to improve compliance with Section 508 of the *Rehabilitation Act*. (Source: GSA, [IT Accessibility Laws and Policies](#)).

AgMax. The acquisition approval request system used by USDA.

Equivalent Facilitations. The use of designs, products, or technologies as alternatives to those prescribed, resulting in substantially equivalent or greater accessibility and usability. (Source: Access Board, *Information and Communication Technology: Revised 508 Standards and 255 Guidelines*).

Federal Acquisition Regulations (FAR). A set of principles that govern the Government procurement process. The FAR regulates purchasing of goods and services by the Government. (Source: GSA, [Federal Acquisition Regulation](#)).

Final Rule (for the purposes of this DR). The Access Board's Final Rule updated requirements for ICT covered by Section 508 of the *Rehabilitation Act* and Section 255 of the *Communications Act*. The revisions and updates to the Section 508-based standards and Section 255-based guidelines are intended to ensure that information and communication technology covered by the respective statutes is accessible to and usable by individuals with disabilities. (Source: Federal Register, Final Rule, *Information and Communication Technology (ICT) Standards and Guidelines*).

Information and Communication Technology (ICT). A term for IT that stresses the role of unified communications and the integration of telecommunications (telephone lines and wireless

signals) and computers, as well as necessary enterprise software, middleware, storage, and all EIT. (Source: Access Board, *Information and Communication Technology: Revised 508 Standards and 255 Guidelines*).

Section 508 of the *Rehabilitation Act* of 1973, as amended. This is a Federal law that requires Federal agencies to provide individuals with disabilities equal access to electronic information and data comparable to those who do not have disabilities, unless an undue burden would be imposed on the Federal agency. (Source: Access Board, [Section 508 \(Federal Electronic and Information Technology\)](#)).

Trusted Tester. The Department of Homeland Security Trusted Tester process is a manual test approach that aligns with the ICT Testing Baseline and provides repeatable and reliable conformance test results. (Source: GSA, [Trusted Tester and ICT Testing Baseline](#)).

Undue Burden. The undue burden exception applies only to the specific features or functions of the ICT that cannot be made to conform to the Revised 508 Standards without imposing an undue burden on the agency or component. (Source: [Step 2: Determine ICT Exceptions](#)).

Web Content Accessibility Guidelines (WCAG). The WCAG defines how to make web content more accessible to individuals with disabilities. (Source: W3C, *Web Content Accessibility Guidelines (WCAG) 2.2*).

Working Draft Disseminations. Living documents where multiple people are editing the document before the final version. These documents are typically sent via email for updates, edits, and corrections. (Source: W3C, [Types of Documents W3C Publishes](#)).

APPENDIX C

AUTHORITIES AND REFERENCES

[7 CFR § 2.24](#), Delegation of Authority, *Assistant Secretary for Administration*

[7 CFR § 2.25](#), Delegation of Authority, *Assistant Secretary for Civil Rights*

[7 CFR § 2.32](#), Delegation of Authority, *Chief Information Officer*

[7 CFR § 2.93](#), Delegation of Authority, *Director, Office of Contracting and Procurement*

[7 CFR Part 15e](#), *Enforcement of Nondiscrimination on the Basis of Handicap in Programs or Activities Conducted by the United States Department of Agriculture*

[29 CFR Part 1614](#), *Federal Sector Equal Employment Opportunity*

[36 CFR Part 1194](#), *Information and Communication Technology Standards and Guidelines*

[40 U.S.C. § 121\(c\)](#), *Regulations by Administrator*

[44 U.S.C. Chapter 35](#), *Coordination of Federal Information Policy*

Access Board, [About the U.S. Access Board](#)

Access Board, [Federal Acquisition Regulation \(FAR\) Updated to Incorporate Revised 508 Standards](#)

Access Board, [Information and Communication Technology: Revised 508 Standards and 255 Guidelines](#)

Access Board, [Section 508 \(Federal Electronic and Information Technology\)](#)

Access Board, [U.S. Access Board](#)

Americans with Disabilities Act of 1990, [P.L. 101-336](#), July 26, 1990

CIO.gov, [Accessibility Community of Practice](#)

Communications Act of 1934, [47 U.S.C. § 255](#), *Access by Persons with Disabilities*, as amended

DOJ, [Workforce Investment Act of 1998: Sec. 508. Electronic and Information Technology](#), August 7, 1998

EEOC, [*The Rehabilitation Act of 1973: Sections 501 and 505*](#)

ETSI, [EN 301 549](#), V3.2.1, *Accessibility Requirements for ICT Products and Services*, March 2021

FAR, [48 CFR Part 1](#), *Federal Acquisition Regulations System*

FAR, [48 CFR Part 2](#), *Definitions of Words and Terms*

FAR, [48 CFR Part 7](#), *Acquisition Planning*

FAR, [48 CFR Part 11](#), *Describing Agency Needs*

FAR, [48 CFR Part 12](#), *Acquisition of Commercial Products and Commercial Services*

FAR, [48 CFR Part 39](#), *Acquisition of Information Technology*

FAR, [48 CFR Subpart 39.2](#), *Information and Communication Technology*

FCC, [Section 255 - Disability Rights Office](#), July 13, 2022

FCC, [Section 508 of the Rehabilitation Act](#)

FCC, [Telecommunications Access for People with Disabilities](#), January 27, 2021

Federal Register, [Federal Acquisition Regulation: Section 508-Based Standards in Information and Communication Technology](#), August 11, 2021

Federal Register, [Final Rule](#), *Information and Communication Technology (ICT) Standards and Guidelines*, January 18, 2017

GSA, [Accessibility Requirements Tool \(ART\)](#), September 2023

GSA, [Federal Acquisition Regulation](#)

GSA, [How to Create an Accessibility Conformance Report Using A Voluntary Product Accessibility Template \(VPAT®\)](#), November 2022

GSA, [IT Accessibility Laws and Policies](#), November 2022

GSA, [Section508.gov](#)

GSA, [Trusted Tester and ICT Testing Baseline](#), February 2023

GSA, [Voluntary Product Accessibility Template \(VPAT®\)](#), May 2022

OMB, Circular [A-130](#), *Managing Information as a Strategic Resource*, Revised, July 28, 2016

Rehabilitation Act of 1973, [P.L. 93-112](#), September 26, 1973, codified at [29 U.S.C. § 791 et seq.](#), as amended

Section 501 of the *Rehabilitation Act of 1973*, [29 U.S.C. § 791](#), *Employment of Individuals with Disabilities*, as amended

Section 504 of the *Rehabilitation Act of 1973*, [29 U.S.C. § 794](#), *Nondiscrimination Under Federal Grants and Programs*, as amended

Section 505(a)(2) of the *Rehabilitation Act of 1973*, [29 U.S.C. § 794a](#), *Remedies and Attorney Fees*, as amended

Section 508 of the *Rehabilitation Act of 1973*, [29 U.S.C. § 794d](#), *Electronic and Information Technology*, as amended

Telecommunications Accessibility Enhancement Act of 1988, [P.L. 100-542](#), October 28, 1988

Telecommunications Act of 1996, [P.L. 104-104](#), February 8, 1996

Telecommunications for the Disabled Act of 1982, [P.L. 97-410](#), January 3, 1983

Twenty-First Century Communications and Video Accessibility Act of 2010, [P.L. 111-260](#), October 8, 2010

USDA, [Agriculture Department \(AD\) 3027](#), *USDA Program Discrimination Complaint Form*, Expiration Date May 31, 2024

USDA, [DM 0100-001](#), *Preparing Departmental Directives*, January 4, 2018

USDA, DM 4030-001, *Section 508 Procedures*

USDA, [DM 4300ci-001](#), *EEO [Equal Employment Opportunity] Complaint Processing Procedures*, July 20, 2001

USDA, [DR 1110-002](#), *Management's Responsibility for Internal Control*, March 5, 2021

USDA, [DR 3130-010](#), *United States Department of Agriculture Enterprise Information Technology Governance*, April 20, 2021

USDA, [DR 3130-013](#), *Information Technology Capital Planning and Investment Control*, May 24, 2021

USDA, [DR 3145-001](#), *Oversight and Management of the Federal Information Technology Acquisition Reform Act (FITARA)*, May 7, 2021

USDA, [DR 3185-001](#), *Enterprise Architecture*, April 19, 2022

USDA, [DR 4300-007](#), *Processing Equal Employment Opportunity (EEO) Complaints of Discrimination*, August 4, 2021

USDA, [DR 4330-002](#), *Nondiscrimination in Programs and Activities Receiving Federal Financial Assistance from USDA*, July 27, 2021

USDA, [DR 4330-003](#), *Nondiscrimination in USDA-Conducted Programs and Activities*, October 3, 2022

USDA, OASCR, [Equal Employment Opportunity Complaint Filing - Frequently Asked Questions](#), website

USDA, OASCR, [Filing a Discrimination Complaint as a USDA Employee](#), website

USDA, OASCR, [Filing a Program Discrimination Complaint as a USDA Customer](#), website

USDA, OASCR, [How to File a Program Discrimination Complaint](#), website

USDA, OASCR, [Program Discrimination Complaint Filing - Frequently Asked Questions](#), website

USDA, OCIO, [Section 508 Accessibility and Compliance](#), website

U.S. Department of Labor, [Americans with Disabilities Act](#)

U.S. Department of Labor, [Section 504, Rehabilitation Act of 1973](#)

W3C, [Types of Documents W3C Publishes](#), 2023

W3C, [WCAG 2 Overview](#), January 25, 2023

W3C, [Web Content Accessibility Guidelines \(WCAG\) 2.1](#), 2018

W3C, [Web Content Accessibility Guidelines \(WCAG\) 2.2](#), October 5, 2023